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Attorneys for Defendants
SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)

UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, and individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation, Defendants.	Case No.: 3:26-cv-07504-LJC **JOINT CASE MANAGEMENT STATEMENT**

Plaintiff BRENDAN NGEHSI NEWANFORBI and Defendants SHANNON SMITH and HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION, respectfully submit the following Joint Case Management Statement.

Plaintiff and Defendants' counsel met and conferred by Zoom remote videoconference on September 29, 2026, and have cooperated since that date in preparation of this report.

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JURISDICTION & SERVICE

Plaintiff's Position:

The Court has federal-question jurisdiction under 28 U.S.C. section 1331 over Plaintiff's claims under 42 U.S.C. section 1983 and 18 U.S.C. sections 1962 and 1964, and supplemental jurisdiction under 28 U.S.C. section 1367 over the related California claims. Venue is proper in this District. Defendants accepted service effective August 31, 2026, and no party remains to be served.

Defendants' Position:

Jurisdiction is not disputed. The Court has jurisdiction over this matter pursuant to 28 U.S.C. § 1331. Defendants have been served with a copy of the summons and Complaint.

FACTS

Plaintiff's Position:

Plaintiff was required, as a condition of California parole, to participate in sex-offender treatment provided by HOPE under its state contractual and regulatory role. Plaintiff alleges that HOPE and its chief executive officer and policymaker, Shannon Smith, maintained a blanket retention policy linking treatment completion to the full parole term rather than an individualized clinical determination; used false or retaliatory attendance and treatment-status reporting in the parole process; and continued those practices after receiving notice of Plaintiff's objections. Defendants dispute liability and the material factual allegations.

Defendants' Position:

Defendants deny the Complaint's allegations and deny that Defendants engaged in any wrongful conduct.

LEGAL ISSUES

Plaintiff's Position:

The principal legal issues include whether Defendants acted under color of state law under 42 U.S.C. section 1983; whether the challenged policy and reporting practices support individual and entity liability under *West v. Atkins,* 487 U.S. 42 (1988), and *Monell v. Department of Social Services,* 436 U.S. 658 (1978); whether the alleged conduct violated the First and Fourteenth Amendments and California Civil Code section 52.1; whether fraud, negligent-misrepresentation, and RICO elements

are adequately alleged; and whether claim or issue preclusion applies based on the prior state proceeding.

Defendants' Position:

The Complaint alleges claims styled as: (1) 42 U.S.C. § 1983-Individual Capacity; (2) 42 U.S.C. § 1983-Monell Liability; (3) California Civil Code Section 52.1 (Bane Act); (4) Fraud and Negligent Misrepresentation; and (5) 18 U.S.C. Section 1962(c)-(d) (RICO).

MOTIONS

Plaintiff's Position:

Defendants' motion to dismiss (ECF No. 15) is pending. Plaintiff has filed an opposition. Under ECF No. 22, Defendants' reply is due October 13, 2026, and the motion hearing is set for October 27, 2026 at 10:30 a.m. Plaintiff does not presently anticipate another merits motion before the Court rules, but reserves the right to seek appropriate discovery or case-management relief.

Defendants' Position:

On September 21, 2026, Defendants filed a motion to dismiss Plaintiff's Complaint, which is currently set for hearing on October 27, 2026. (ECF Nos. 15, 22) Should any of Plaintiff's claims survive that motion, Defendants anticipate filing a motion for summary judgment. Defendants may also need to file discovery-related motions.

AMENDMENT OF PLEADINGS

Plaintiff's Position:

Plaintiff does not presently seek to add parties or claims. Plaintiff requests that any amendment deadline be set after disposition of the pending motion to dismiss and reserves the right to amend under Federal Rule of Civil Procedure 15 or as permitted by the Court.

Defendants' Position:

Defendants do not anticipate any further amendment of pleadings will be necessary.

EVIDENCE PRESERVATION

Plaintiff's Position:

Plaintiff has reviewed the Court's ESI Guidelines and has preserved relevant communications, treatment records, filings, and electronically stored information within his possession or control. At

the September 29, 2026 Rule 26(f) conference, the parties discussed reasonable and proportionate preservation obligations.

Defendants' Position:

Defendants have reviewed the Guidelines of Electronically Stored Information and are aware of their obligations.

INITIAL DISCLOSURES

Plaintiff's Position:

Plaintiff will serve his Rule 26(a)(1) initial disclosures no later than October 15, 2026. Plaintiff is willing to use an appropriate protective order for genuinely confidential treatment, personnel, contracting, or business records.

Defendants' Position:

Defendants will serve initial disclosures by no later than October 15, 2026. If necessary, Defendants will work with Plaintiff to secure a stipulated protective order to allow for the exchange of documents containing sensitive material.

DISCOVERY

Plaintiff's Position:

Although no formal discovery has been taken in this federal action, the bulk of the relevant documentary discovery has already been completed in the prior state action, including approximately 542 pages produced by Defendants. Plaintiff therefore proposes prompt authorization to use, or re-production of, that material under an appropriate protective order, followed only by targeted supplemental written discovery, limited depositions, and any necessary third-party subpoenas concerning HOPE's policies and manuals; treatment-completion and discharge-review practices; reports and communications with CDCR and parole personnel; contracts and billing; Defendants' knowledge and intent; causation; and damages. Plaintiff does not presently request modification of the Federal Rules' discovery limits and will consider a stipulated ESI order if needed.

Defendants' Position:

Defendants anticipate the scope of discovery to include requests for production, interrogatories, requests for admission, and limited depositions. Defendants do not anticipate that

discovery in this action will concern e-discovery, but will consider entering a stipulated e-discovery order if the issue arises.

CLASS ACTIONS

Not applicable.

RELATED CASES

Plaintiff's Position:

Plaintiff identifies two prior proceedings involving overlapping parties or subject matter: *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court No. STK-CV-UF-2026-0001032, in which the court sustained a demurrer without leave to amend on July 15, 2026; and *Newanforbi v. Hope Psychotherapy, Inc.*, E.D. Cal. No. 2:26-cv-00195-TLN-AC, voluntarily dismissed without prejudice on June 1, 2026. Neither proceeding is pending. Defendants rely on the state proceeding in their preclusion arguments; Plaintiff disputes that it bars this action.

Defendants' Position:

Defendants are not aware of any related case.

RELIEF

Plaintiff's Position:

Plaintiff seeks compensatory damages for economic loss, emotional distress, loss of liberty, and reputational harm in an amount according to proof; treble damages under 18 U.S.C. section 1964(c); punitive damages against Smith to the extent permitted by law; declaratory and injunctive relief concerning the challenged retention and reporting practices; costs; and all other authorized relief. The amount is not yet fully calculable before discovery because it depends on the duration and causal effect of the challenged practices, lost earning capacity, and proof of noneconomic harm. Plaintiff does not seek the public-enforcement-only $25,000 civil penalty under California Civil Code section 52.1(b).

Defendants' Position:

Defendants have not filed a counter or crossclaim. Defendants deny Plaintiff is entitled to any relief.

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SETTLEMENT AND ADR

Plaintiff's Position:

Plaintiff has filed his ADR certification under ADR Local Rule 3-5(b). On September 26, 2026, Plaintiff served a confidential settlement proposal, which defense counsel has transmitted to Defendants. Because the principal document production has already occurred, Plaintiff proposes court-sponsored mediation within 45 days after resolution of the pending motion to dismiss and after prompt re-production or authorized use of the prior discovery, together with a targeted exchange of any remaining policy, reporting, contract, insurance, and damages documents. Plaintiff is willing to participate earlier if Defendants and the Court believe an earlier session would be productive.

Defendants' Position:

On September 26, 2026, Plaintiff served Defendants' counsel with a confidential settlement offer. Counsel has reviewed the offer and provided a copy to our clients. Counsel, however, has not yet had an opportunity to fully discuss the offer with Defendants. Defendants do not believe that it would be productive to participate in a court-supervised settlement conference until after resolution of the pending motion to dismiss.

OTHER REFERENCES

The parties do not presently believe this action is suitable for binding arbitration, appointment of a special master, or referral to the Judicial Panel on Multidistrict Litigation.

NARROWING OF ISSUES

Plaintiff's Position:

Most consequential issues: (1) whether claim or issue preclusion applies; (2) whether Defendants acted under color of state law and whether the challenged conduct is attributable to HOPE; and (3) whether the pleaded facts state viable constitutional, Bane Act, fraud/misrepresentation, and RICO claims. The pending motion to dismiss may narrow these issues. The parties may further streamline proof through stipulated authenticity, chronology, and undisputed background facts after targeted discovery.

Defendants' Position:

Not applicable.

SCHEDULING

Plaintiff's Position:

Plaintiff agrees that initial disclosures should be served by October 15, 2026, but does not agree to Defendants' proposed schedule, which would defer trial until July 2028. That schedule is unnecessary because approximately 542 pages of relevant documentary discovery have already been produced in the prior state action, the remaining discovery can be targeted, and Plaintiff estimates that trial will require only five court days. Subject to the Court's calendar and any necessary adjustment following the ruling on the pending motion to dismiss, Plaintiff proposes the following schedule:

Rule 26 Initial Disclosures:	Served on or before October 15, 2026
Prior Discovery Re-Production or Authorization:	Completed by November 13, 2026
Fact Discovery:	Completed by January 29, 2027
Opening Expert Disclosures:	On or before February 12, 2027
Rebuttal Experts:	On or before February 26, 2027
Expert Discovery:	Completed by March 12, 2027
Dispositive Motions:	Filed by March 19, 2027 and heard by April 27, 2027
Pretrial Conference:	May 25, 2027
Trial	June 14, 2027

Defendants' Position:

Defendant proposes the following schedule:

Rule 26 Initial Disclosures:	Served on or before October 15, 2026
Fact Discovery:	Completed by May 1, 2027
Expert Disclosures:	On or before July 1, 2027
Rebuttal Expert Disclosures:	On or before August 1, 2027
Expert Discovery:	Completed by October 1, 2027
Dispositive Motion Deadline:	Filed by January 10, 2028

Pretrial Conference: May 6, 2028

Trial: July 10, 2028

TRIAL

Plaintiff's Position:

Plaintiff demands a jury trial on all issues so triable, requests that trial begin on June 14, 2027, and estimates five court days.

Defendants' Position:

Defendants have yet to file an answer, but Plaintiff has requested a jury trial. Defendants estimate the length of trial to be 4 days.

DISCLOSURE OF NON-PARTY INTERESTED ENTITIES OR PERSONS

Plaintiff's Position:

Plaintiff knows of no non-party person or entity with a financial or other interest that could be substantially affected by the outcome of this action. Plaintiff's Civil Local Rule 3-15 certification states the same and will be filed before the joint statement.

Defendants' Position:

None.

PROFESSIONAL CONDUCT

Plaintiff's Position:

Plaintiff has reviewed and will comply with Civil Local Rule 11-4, the Guidelines for Professional Conduct, and the Local Rules of this Court.

Defendants' Position:

Defense counsel is familiar, and will comply, with Civil Local Rule 11-4, the standards of professional conduct, and the Local Rules of this Court.

OTHER

Plaintiff's Position:

Because relevant materials were produced under confidentiality restrictions in the prior state action, the parties should promptly meet and confer regarding a protective order that permits efficient use or re-production of those materials in this action.

Defendants' Position:

None.

Dated: October 2, 2026

By: /s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona

Dated: October 2, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BLAZE VAN DINE
ERIC T. MARTINEZ
Attorneys for Defendants,
SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)